

No. 22/27/2019-1GS-III
Government of Haryana
General Administration Department
(General Services- III Branch)

Dated Chandigarh, the 04th June, 2020

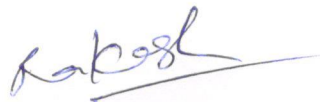
To

1. All the Administrative Secretaries to Government, Haryana.
2. All Heads of Departments in the State of Haryana.
3. All the Managing Directors/Chief Administrators of Boards/Corporations/Public Sector Undertakings in Haryana.
4. The Registrar General of Punjab & Haryana High Court, Chandigarh.
5. All the Divisional Commissioners in the State of Haryana.
6. All the Deputy Commissioners and Sub Divisional Officers (Civil) in the State of Haryana.
7. The Registrars of all the Universities of the State of Haryana.

Subject: The Haryana Scheduled Castes (Reservation in Admission in Government Educational Institutions) Act, 2020 (Haryana Act No. 14 of 2020).

I am directed to invite your attention to the subject noted above and forward herewith a copy of **The Haryana Scheduled Castes (Reservation in Admission in Government Educational Institutions) Act, 2020** for information and necessary action at your end.

The above instructions may please be brought to the notice of all concerned for strict compliance.



**Under Secretary General Administration,
for Chief Secretary to Government, Haryana.**

Internal distribution

Incharge NIC for hosting the above instruction on State Government website.



Haryana Government Gazette

EXTRAORDINARY

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LEGISLATIVE SUPPLEMENT

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PART-I
HARYANA GOVERNMENT
LAW AND LEGISLATIVE DEPARTMENT

Notification

The 15th May, 2020

No. Leg.15/2020.—The following Act of the Legislature of the State of Haryana received the assent of the Governor of Haryana on the 25th March, 2020 and is hereby published for general information:-

HARYANA ACT NO. 14 OF 2020

**THE HARYANA SCHEDULED CASTES (RESERVATION IN ADMISSION IN
GOVERNMENT EDUCATIONAL INSTITUTIONS) ACT, 2020**

**AN
ACT**

to provide for reservation in admission in Government educational institutions to persons belonging to the Scheduled Castes in the State of Haryana with special measures for deprived Scheduled Castes and for matters connected therewith or incidental thereto.

Be it enacted by the Legislature of the State of Haryana in the Seventy-first Year of the Republic of India as follows:-

1. This Act may be called the Haryana Scheduled Castes (Reservation in Admission in Government Educational Institutions) Act, 2020. Short title.
2. In this Act, unless the context otherwise requires,- Definitions.
 - (a) “Annexure” means the Annexure appended to this Act;
 - (b) “competent authority” means an officer appointed under section 5;
 - (c) “deprived Scheduled Castes” means such Scheduled Castes as specified in Annexure;
 - (d) “Government educational institution” means any higher education institution established and maintained by the Government or receiving aid out of the State funds, imparting education leading to the award of a degree including a post-graduate degree and shall include Government aided technical and professional institutions;
 - (e) “Government” means the Government of the State of Haryana in the administrative department;
 - (f) “prescribed” means prescribed by the rules;
 - (g) “Scheduled Castes” means Scheduled Castes notified under article 341 of the Constitution of India.
3.
 - (1) Twenty per cent seats shall be reserved for the members of the Scheduled Castes while making admission in Government educational institutions. Reservation.
 - (2) Fifty per cent of the twenty per cent seats reserved for Scheduled Castes for admission in any Government educational institution shall be set aside for candidates belonging to deprived Scheduled Castes as enumerated in the Annexure.
4. Where a seat set aside for candidate from deprived Scheduled Castes for admission in Government educational institutions is not filled up in any academic year due to non-availability of candidate of deprived Scheduled Castes possessing the requisite qualifications, the same shall be made available to candidate of Scheduled Castes. Seats not to be carried forward to next year.

Competent authority to issue certificate.

5. (1) The Government may, by notification, appoint any officer as competent authority for the purposes of carrying out the provisions of this Act.
- (2) The competent authority shall, for the purposes of section 3, issue caste identification certificate specifying the caste name of the Scheduled Caste, in such manner, as may be prescribed.
- (3) The competent authority shall, for the purposes of this Act, exercise such powers and perform such functions, as may be prescribed.
- (4) The competent authority shall be deemed to be a public servant within the meaning of section 21 of the Indian Penal Code, 1860 (Central Act 45 of 1860).

Certificate of identification.

6. A person belonging to the deprived Scheduled Castes shall, for the purposes of section 3, support his candidature by a certificate of caste identification issued by the competent authority under sub-section (2) of section 5.

Protection of action taken in good faith.

7. No suit, prosecution or other legal proceedings shall lie against the competent authority, officers of the Government for anything which is in good faith done or intended to be done under this Act or any rule or order made thereunder.

Power to remove difficulties.

8. If any difficulty arises in giving effect to the provisions of this Act, the Government may, by order, published in the Official Gazette, make such provisions not inconsistent with the provisions of this Act, as may appear to be necessary for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of three years from the commencement of this Act.

Power to make rules.

9. (1) The Government shall, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.
- (2) Every rule made under this Act shall, as soon as possible, after it is made, be laid before the State Legislature.

Review of Annexure.

10. The Government may, on the basis of such criteria, as may be prescribed and on the expiration of ten years from the coming into force of this Act and at every succeeding period of five years thereafter, review the Scheduled Castes included in the Annexure.

ANNEXURE**(see section 3)****LIST OF DEPRIVED SCHEDULED CASTES**

1. Ad Dharmi
2. Balmiki
3. Bangali
4. Barar, Burar, Berar
5. Batwal, Barwala
6. Bauria, Bawaria
7. Bazigar
8. Bhanjra
9. Chanal
10. Dagi
11. Darain
12. Deha, Dhaya, Dhea
13. Dhanak
14. Dhogri, Dhangri, Sigg
15. Dumna, Mahasha, Doom
16. Gagra
17. Gandhila, Gandil Gondola
18. Kabirpanthi, Julaha
19. Khatik
20. Kori, Koli
21. Marija, Marecha
22. Mazhabi, Mazhabi Sikh
23. Megh, Meghwal
24. Nat, Badi
25. Od
26. Pasi
27. Perna
28. Pherera
29. Sanhai
30. Sanhal
31. Sansi, Bhedkut, Manesh
32. Sansoi
33. Sapela, Sapera
34. Sarera
35. Sikligar, Bariya
36. Sirkiband

BIMLESH TANWAR,
SECRETARY TO GOVERNMENT, HARYANA,
LAW AND LEGISLATIVE DEPARTMENT.